of a common judicatory. So ready were the ancient governments to merge the injuries to individuals in a state quarrel, and so certain was it, that any judicial decree must have been enforced by arms, that the mild form of a legal discussion could not but be viewed with indifference, if not contempt. And yet, it would not be extravagant, to conjecture, that all civil causes were sustained before the Amphyctionic Council.(*a*) What we know of the Achæan confederacy, exhibits it as purely national, or rather consolidated. They had common magistrates, taken by rotation from the towns;(*b*) and the amenability of the constituent cities to some supreme tribunal, is as probable as otherwise. But, in fact, it would be a waste of time, to dwell upon these obscurities. To catch *all* the semblances of confederacies, scattered through the historic page, would be no less absurd, than to search for light in regions of darkness, or a stable jurisprudence in the midst of barbarity and bloodshed. Advancing then, into more modern times, the Helvetic union presents itself; one of whose characteristics is, that there is no common judicatory. (Stanyan, 117.) Nor does it obtain in Holland. But it cannot be concluded from hence, that the Swiss, or the Dutch, the jealousy of whom would not suffer them to adopt a national government, would deem it an abasement, to summon a state, connected as the United States are, before a national tribunal. But our anxiety for precedents is relieved by appealing to the Germanic Empire. The jumble of fifty principalities together, no more deserves *the name of one body, than the incoherent parts of Nebuchadnezzar's image. The princes wage war, [542* without the consent of their paramount sovereign; they even wage war upon each other; nay, upon the emperor himself; after which, it will add but little to say, that they are distinct sovereignties. And yet, both the Imperial Chamber, and the Aulic Council hear and determine the complaints of individuals against the Prince.(*c*)

It will not surely be required to assign a reason, why the confederation did not convey a similar jurisdiction; since that scanty and strict paper was of so different a hue and feature from the constitution, as scarcely to appear the child of the same family.

I hold it, therefore, to be no degradation of sovereignty, in the states, to submit to the supreme judiciary of the United States. At the same time, by way of anticipating an objection, I assert, that it will not follow, from these premises, that the United States themselves may be sued. For the head of a confederacy is not within the reach of the judicial authorities of its inferior members. It is exempted by its peculiar pre-eminences. We have, indeed, known petitions of right, *monstrans de droit*, and even process in the exchequer. But the first is in the style of entreaty; the second, being apparent upon the record, is so far a deduction from the royal title; the third, as in the *Banker's case*, in the 11th volume of the State Trials, is applicable only, where the charge is claimed against the revenue; and all of them are widely remote from an involuntary subjection of the sovereign to the cognisance of his own courts.

2d. But what, if the high independence of dissevered nations remained

(*a*) See Anacharsis, 3 Vol. p. 300.
(*b*) See Gast's Hist. of Greece, p. 321.
(*c*) See History of Germanic Body, p. 157–8.